

If the dates proposed by Plaintiffs do not work for defense counsel, defense counsel should be prepared to provide a date that will work. Whatever date that is, Mr. Schmidt and his counsel will be ordered to appear on that date. If they have a conflict with the deposition date selected by Ford then they will need to make any arrangements necessary to ensure that they appear on that date. Otherwise terminating sanctions will be imposed.

As to Plaintiff Susan Schmidt, the request for terminating sanctions is GRANTED. The Court is inclined to deny terminating sanctions as to Mr. Schmidt primarily based on the fact he has proposed concrete dates for deposition. The vague promise that Susan Schmidt is “willing and able to coordinate dates” is woefully inadequate considering the history of discovery abuse culminating in the March 11 order, and the fact it has now been 1.5 years since Defendant began attempting to schedule these depositions. Accordingly, Plaintiff Susan Schmidt is dismissed from the case with prejudice.

Plaintiffs and their counsel are sanctioned, jointly and severally, in the additional amount of \$1,500.00, payable within 30 days’ notice of this order.

4. 24CV04294 Lendmark Financial Services, LLC v. Garret, Ledena B

EVENT: Motion for Service of the Summons and Complaint By Electronic Means

Motion for Service of the Summons and Complaint By Electronic Means is GRANTED. Plaintiff shall prepare a form of order.

5. 25CV01796 Capital One, NA successor by merger to Discover Bank v. Sweet, Michelle

EVENT: Plaintiff’s Motion for Summary Judgment or in the Alternative Summary Adjudication

Plaintiff’s Motion for Summary Judgment is GRANTED. The Court will sign the proposed order and judgment.

6. 25CV03376 Li, Yi v. AMCAL Chico, LLC et al

EVENT: Motion for Leave to File a Second Amended Complaint

Motion for Leave to File a Second Amended Complaint is GRANTED. Plaintiff shall file and serve the proposed Second Amended Complaint within 10 days of this order. The Court will prepare the order.

7. 25CV04239 Midland Credit Management Inc v. White, Randall E.

EVENT: Defendant's Motion and Motion for Sanctions Against Plaintiff for Failure to Comply With This Court's Order to Produce Documents

Defendant's Motion and Motion for Sanctions Against Plaintiff for Failure to Comply with this Court's Order to Produce Documents is DENIED for failure to comply with the notice requirements of CCP 1005. The proof of service states the moving papers were served by mail on June 12. CCP 1005 requires a minimum of 16 court days' notice plus an additional 5 days for mail. Factoring in both the June Tenth (June 19) and July 4 (Court observed on July 3) court holidays, June 12 is 16 court days before the hearing. Because service was by mail, notice was 5 days short.

8. 26CV00009 Giese, Dale v. Iversen Center

EVENT: Demurrer to Complaint

Demurrer to Complaint is SUSTAINED WITHOUT LEAVE TO AMEND as unopposed. Defendant shall submit the form of order within two weeks.